

LEAGUE OF NATIONS.

To the Permanent Court of International Justice.

In execution of the Resolution of the Council of the League of Nations adopted on May 12th, 1922, of which a certified true copy is annexed hereto, and by virtue of the authorisation given by this Resolution,

The Secretary General of the League of Nations has the honour to present to the Permanent Court of International Justice the request of the Council that the Court will, in accordance with Article 14 of the Covenant of the League, give an advisory opinion upon the following question :

„Was the Workers Delegate for the Netherlands at the Third Session of the International Labour Conference nominated in accordance with the provisions of paragraph 3 of Article 389 of the Treaty of Versailles ?”

Documents are attached hereto setting out the facts out of which the present request for the Court's opinion has arisen, and showing the circumstances in which, and the manner by which, the Delegate in question was nominated, and the doubts which have been raised as to whether this nomination was in accordance with the terms of the Treaty.

They consist of a letter from the Director of the International Labour Office, dated March 17th, 1922, communicating the request of the competent organs of the Labour Organisation that the Council would take the opinion of the Court, and of the fifteen annexes referred to in the letter.

(signed) ERIC DRUMMOND,
Secretary General of the League of Nations.

Geneva, May 22nd, 1922.

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Resolution adopted by the Council, May 12th, 1922.

The Council of the League of Nations, having considered the letter of March 17th, 1922, from the Director of the International Labour Office to the Secretary General, by which the Council is informed of the unanimous desire of the Third International Labour Conference and of the Governing Body of the International Labour Office that the Council will request the opinion of the Permanent Court of International Justice upon the question formulated in the letter,

RESOLVES:

1. The Council requests the Permanent Court of International Justice, in conformity with Article 14 of the Covenant of the League of Nations, to give an advisory opinion upon the question "whether the Workers' Delegate for the Netherlands at the Third Session of the International Labour Conference was nominated in accordance with the provisions of Paragraph 3 of Article 389 of the Treaty of Versailles".
2. The Secretary General is authorised to present this request to the Court, together with the letter from the Director of the International Labour Office and the documents concerning the matter, to give all necessary assistance in the examination of the question and to arrange to be represented before the Court, if necessary.
3. The International Labour Office is requested to afford the Court all assistance which it may require in the consideration of the question hereby submitted.

Certified true copy,

(signed) VAN HAMEL,
Director Legal Section.